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Case Number: 23STCV28274 Hearing Date: July 7, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

JANE DOE,

Plaintiff,

vs.

DOWNTOWN WOMEN'S CENTER, et al.,

Defendants.

Case No.:

23STCV28274

Hearing Date:

July 7, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANTS DOWNTOWN WOMEN'S CENTER AND
DOWNTOWN WOMEN'S CENTER HOUSING LLC'S MOTION FOR SUMMARY JUDGMENT

Background

On November 17, 2023, Plaintiff Jane Doe filed a complaint against Defendants Downtown Women's Center, Downtown Women's Center Housing, LLC, Good Guard Security, Inc., City of Los Angeles, Los Angeles Homeless Services Authority, Housing Authority of the City of Los Angeles, County of Los Angeles, State of California, California Department of Social Services, and John Doe alleging five causes of action. On August 29, 2025, Plaintiff Shannon Lee Seymour ("Plaintiff"), formerly Jane Doe, filed the operative first amended complaint ("FAC") against Defendants Downtown Women's Center ("DWC"), Downtown Women's Center Housing, LLC, Good Guard Security, Inc. ("Good Guard"), City of Los Angeles, Los Angeles Homeless Services Authority, State of California, California Department of Social Services, and John Doe, alleging five causes of action for (1) assault; (2) battery; (3) intentional infliction of emotional distress; (4) negligence; and (5) negligent hiring, supervision and retention.

Defendant DWC filed a cross-complaint on March 19, 2025 against Roes 1 through 50, alleging five causes of action for (1) total or comparative equitable indemnification, (2) contribution, (3) declaratory relief, (4) express indemnity, and (5) comparative fault.

Defendant City of Los Angeles filed a cross-complaint on April 28, 2025 against Roes 1 through 10, alleging three causes of action for (1) indemnification, (2) apportionment of fault, and (3) declaratory relief.

Defendant Los Angeles Homeless Services Authority filed a cross-complaint on October 6, 2025 against Roes 1 through 50, alleging three causes of action for (1) equitable indemnification, (2) apportionment of fault, and (3) declaratory relief.

On April 8, 2026, the Court granted Plaintiff's counsel's motion to be relieved as counsel. Plaintiff does not appear to have obtained new counsel.

Defendants DWC and Downtown Women's Center Housing, LLC (jointly, "Downtown") now move for summary judgment on the two causes of action Plaintiff alleges against them. Plaintiff did not file an opposition.

Legal Standard

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." ((Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; Code Civ. Proc., § 437c, subd. (c).)

A motion for summary judgment or adjudication's function is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." ((Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Summary judgment or adjudication is proper when "all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code

Civ. Proc., § 437c, subd. (c); see also *Villa v. McFerren* (1995) 35 Cal.App.4th 733, 741.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. ((*Aguilar v. Atlantic Richfield Co.*, supra, 25 Cal.4th at p. 850.) As to each claim as framed by the complaint, the defendant moving for summary judgment or adjudication must satisfy the initial burden of proof by presenting affirmative evidence to disprove at least one essential element of the plaintiff's cause of action, show that an element cannot be established, or to establish an affirmative defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Sanchez v. Swinerton & Walberg Co.* (1996) 47 Cal.App.4th 1461, 1465.)

Once the moving defendant meets its burden for a particular cause of action, the burden shifts to the nonmoving plaintiff. (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Ibid.)

On a motion for summary judgment or adjudication, the moving party's supporting documents are strictly construed, while the nonmoving party's documents are liberally construed. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 24.) Any "doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion." (Ibid.)

Discussion

Downtown asserts that no triable issue of material fact exists and that they are entitled to summary judgment because they "have no affiliation with the subject premises where Plaintiff alleges that she was assaulted, nor with Good Guard." (Mot., 1:12-13.)

A. Allegations of the FAC

Plaintiff's FAC alleges that she "was a patient and/or resident who was sexually assaulted by Defendant JOHN DOE on or about April 16, 2023." (FAC, ¶ 1.) Plaintiff alleges that Supervising Defendants Downtown, the City of Los Angeles, Los Angeles Homeless Services Authority, the State of California, and California Department of Social Services "act[ed] as agencies, organizations, and/or entities

responsible for the oversight, funding, referral, provision, coordination, and/or administration of homeless services, housing placements, and related programs for individuals such as Plaintiff." (FAC, ¶ 9.) People Assisting the Homeless ("PATH") "work[ed] in coordination with Supervising Defendants to provide shelter and housing placement services to homeless individuals." (FAC, ¶ 10.) Plaintiff alleges that Good Guard employed John Doe "for the provision of security services at the facility," and "[b]y virtue of their contracts, funding, oversight, and coordination responsibilities, the Supervising Defendants shared in and/or delegated duties relating to the hiring, training, supervision, retention, monitoring, and control of Defendant JOHN DOE while he was providing security services on their behalf." (FAC, ¶ 11.)

Plaintiff alleges that PATH referred Plaintiff for housing placement, placing her "at the subject facility intended to provide safe housing and services for people such as Plaintiff experiencing homelessness." (FAC, ¶ 12.) Plaintiff then alleges that "[o]n or about April 16, 2023, at approximately 4:30 a.m., Plaintiff was returning to her dormitory from the female restroom when Defendant JOHN DOE approached her near the dorm area. ... Without consent, Defendant JOHN DOE grabbed Plaintiff's wrists and forcefully pushed her right hand down onto his genitals while pressing his body against hers." (FAC, ¶¶ 14-15.) "Plaintiff immediately reported the incident to a PATH counselor who acknowledged the incident and informed Plaintiff that they had contacted GOOD GUARD and advised Plaintiff that Defendant JOHN DOE would no longer be working at the facility." (FAC, ¶ 16.)

B. Negligence

Downtown contends that Plaintiff cannot establish that Downtown owed Plaintiff a duty, nor that Downtown caused Plaintiff's injuries. "The elements of a negligence cause of action are duty, breach, causation and damages." (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

a.

Duty

"To prevail in a negligence action, a plaintiff must show that the defendant owed a legal duty, the defendant breached that duty and the breach proximately caused injury to the plaintiff." (J.L. v. Children's Institute, Inc. (2009) 177 Cal.App.4th 388, 396.) "A

tort involves a violation of a legal duty, imposed by statute, contract or otherwise, owed by the defendant to the person injured. Without such a duty, any injury is an injury without wrong. [Citation.] A person is ordinarily not liable for the actions of another and is under no duty to protect another from harm, in the absence of a special relationship of custody or control.” (Roman Catholic Bishop v. Superior Court (1996) 42 Cal.App.4th 1556, 1564.) “Duty, being a question of law, is particularly amenable to resolution by summary judgment.” (Romero v. Superior Court (2001) 89 Cal.App.4th 1068, 1078.)

“A defendant cannot be held liable for the defective or dangerous condition of property which it [does] not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper.” (Donnell v. California Western School of Law (1988) 200 Cal.App.3d 715, 720.)

The police report from Plaintiff’s alleged assault indicates that it occurred at 3210 Riverside Drive in Los Angeles, California. (Cary Decl., ¶ 4, Ex. C., RFP No. 7.) Downtown provides the declaration of Amy Turk, the CEO of DWC, which states that DWC does not own, operate, maintain, or control the property located at 3210 Riverside Drive in Los Angeles, nor is DWC affiliated with the location in any way. (Turk Decl., ¶ 5.) DWC is a housing and homeless response program with two housing sites that it owns and maintains, separate from the location where Plaintiff’s causes of action arise. (Turk Decl., ¶ 3.) At the time of the incident, DWC also operated a temporary shelter out of a hotel in downtown Los Angeles. (Ibid.)

DWC operates the Access Center, located at 442 S. San Pedro Street, Los Angeles, California 90013, a daytime drop-in center that is not open overnight. (Turk Decl., ¶ 6.) DWC’s records show that Plaintiff received services at the Access Center. (Ibid.) Unhoused women whom the DWC serves sometimes use DWC’s address as their mailing address when they do not have a permanent address, so this explains why the police report for Plaintiff’s incident provides the Access Center’s address. (Ibid; see Cary Decl., ¶ 4, Ex. C., RFP No. 7.)

The Los Angeles Homeless Authority maintains records for unhoused women that DWC can access. (Turk Decl., ¶¶ 2, 6.) The last recorded contact Plaintiff had with the Access Center case manager was on January 6, 2023. (Turk Decl., ¶ 6.)

Plaintiff was also enrolled in the DHS-Housing for Health Program, for which DWC is a contracted service provider. (Turk Decl., ¶ 7.) DHS is required to enter program notes into a database that DWC can access. (Ibid.) A note dated March 31, 2023, demonstrates that Plaintiff asked the DWC case manager why they could not provide interim housing referrals, and the case manager “explained that Housing for Health program does not provide interim housing referrals and that [case manager] can direct [plaintiff] to 211 or LAHSA outreach worker Jonathan Oskins.” (Ibid.) Accordingly, DWC’s records demonstrate that DWC did not refer to or place Plaintiff at the 3210 Riverside Drive location, nor did Plaintiff ever reside at any of DWC’s locations. (Turk Decl., ¶ 6.)

As for Downtown Women’s Center Housing, LLC, it is an entity for the real estate and financing aspects of the DWC and is not involved in DWC’s daily operations. (Turk Decl., ¶ 4.) Moreover, Downtown is not affiliated with Good Guard, as Good Guard did not provide services to any properties DWC operated at the time of the incident. (Turk Decl., ¶ 9.)

The unrefuted evidence presented by Downtown demonstrates that Downtown did not operate, nor is it connected to the premises where the incident occurred. Downtown similarly lacks a relationship with the Good Guard, the company that employed John Doe. Accordingly, Downtown establishes that it did not owe Plaintiff a legal duty. The burden now shifts to Plaintiff, but she did not file an opposition with facts that could raise a triable issue of material fact. Because Plaintiff has not demonstrated that the element of duty is plausible, Downtown’s motion for summary judgment as to the fourth cause of action for negligence is proper.

C. Negligent

Hiring, Supervision, and Retention

Downtown also moves for summary judgment on Plaintiff’s fifth cause of action for negligent hiring, supervision and retention.

“An employer may be liable to a third person for the employer’s negligence in hiring[, supervising,] or retaining an employee who is incompetent or unfit.” (Federico v. Superior Court (Jenry G.) (1997) 59 Cal.App.4th 1207, 1213.) “Liability is based upon the facts that the employer knew or should have known that hiring the employee created a

particular risk or hazard and that particular harm materializes.” (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.)

Downtown asserts that “Plaintiff’s discovery responses consist only of allegations that Defendants employed John Doe, a security guard, and that they were negligent in their hiring, training, and supervising of their employees, that Defendants knew or should have known that John Doe had sexual or inappropriate tendencies but failed to supervise him. (Pltf’s resp to SRs no. 5, 6, 52, Exh. E). Plaintiff has no evidence to support these allegations. Again, these uninformative interrogatories consist only of allegations, and therefore Defendants meet their burden of showing that Plaintiff cannot establish an essential element of her cause of action.” (Mot., 8:2-8.) Plaintiff’s discovery responses state, inter alia, “Defendant JOHN DOE, a security guard and/or employee of Defendants DOWNTOWN WOMEN’S CENTER, a California corporation; DOWNTOWN WOMEN’S CENTER HOUSING, LLC ... intentionally acted with the intent to cause harmful contact, approached Plaintiff and sexually assaulted Plaintiff JANE DOE with such force that Plaintiff suffered injuries and damages... Defendants DOWNTOWN WOMEN’S CENTER, a California corporation; DOWNTOWN WOMEN’S CENTER HOUSING, LLC ... owed a duty of care to Plaintiff (and to all other residents and/or dependents to the SUBJECT PREMISES) to hire employees that could conform their conduct to the law and that would not inflict harm upon their security guard and/or employee.” (Casry Decl., ¶ 6; Ex. E, SROG No. 6, pp. 6-7.) These are merely legal arguments and cannot serve as evidence that Downtown is liable for supervising, retaining, or hiring John Doe. (See Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 580-581 [“Defendant contends that the factually devoid answers to the Judicial Council form interrogatories were sufficient to require plaintiffs to prove their [motion for summary judgment]... We agree. Plaintiffs’ Judicial Council form interrogatory answers which contained no facts supporting the existence of misrepresentations or a fraudulent conspiracy shifted the burden of proof in connection with the summary judgment.”].)

Based on Downtown’s evidence that they lack any affiliation with John Doe or Good Guard, Downtown cannot be liable for the negligent hiring, supervision, or retention of John Doe. Plaintiff does not establish a triable issue of material fact. Without any evidence raising a question regarding Downtown’s affiliation with John Doe or Good Guard, summary judgment is also proper on Plaintiff’s fifth cause of action for negligent hiring, supervision, and retention.

Conclusion

Based on the foregoing, Downtown's motion for summary judgment is GRANTED in its entirety. Downtown is ordered to file a proposed judgment within ten days of this Order.

Downtown is ordered to give notice of this Order.

DATED: July 7, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court